

21STLC06326 21STLC06326

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-23

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TENTATIVE RULING

Chase v. Seals, No. 21STLC06326

Defendant's Motion to Dismiss for Failure to Prosecute

The Court denies the motion. While Plaintiff has been less than diligent in pursuing this action, the Court finds on balance, that the factors listed in CRC 3.1342(e) that it needs to consider for a discretionary dismissal under section 583.420(a)(2)(A) for failure to bring the case to trial within three years after commencing the case against Defendant weigh against dismissal at this time. The case history shows substantial activity in the case, although periods of delay by Plaintiff. Nevertheless, the Court does not find, in exercising its discretion, that it is appropriate to dismiss at this time.